

Fall Semester 2026 Syllabus Torts I Professor Weeden Thurgood Marshall School of Law

(Please be informed that the dates and events written in this syllabus could change.)

LAW 508 SECTION 4

NAME: Professor L. Darnell Weeden

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Office Location TMSL 236L

Office Hours: Monday Tuesday, Wednesday & Friday 9:00 A.M.-9:50 A.M., Monday, Wednesday, Friday 11:00 A.M.-12:50 P, M., 2:00 – 2:10 P.M.

Class Time Monday Wednesday & Friday 1:00 – 1:50 P.M.

Classroom Location

Thurgood Marshall School of Law Room 206

Westlaw, TWEN Page

Please be sure to sign up for the TWEN page because information relevant to this class will be posted on the TWEN page during the semester.

Course Book:

Prosser, Wade, and Schwartz's Torts, Cases and Materials, 15th edition (2024), by Victor E.

Schwartz, David F. Partlett, W. Jonathan Cardi, and Alexandra Lahav

ISBN: 9798887865522

“Throughout this text, we have held fast to a cardinal principle that has been a hallmark of this text for seven decades; The casebook is not used to present any particular philosophy of tort law. We leave that to the law reviews, the congressional testimony, and the amicus briefs. This casebook aspires to provide teachers with the raw materials to inform and challenge students to learn the law and think critically about it.” This edition appears in a world dramatically impacted by the COVID 19 pandemic. Also, the authors of this casebook proclaim, “Those of you learning torts from this casebook will make the law in the 21st century. That is an important undertaking. We hope that you will find the first step of that undertaking, learning Torts from the 15th Edition, challenging and enjoyable.”

Highly Recommended Additional Reading: *Case Analysis and Fundamentals of Legal Writing*, by Williams P. Statsky & R. John Wernet, Jr. (any available edition). According to Statsky & Wernet, “No one has devised a universally accepted method of acquiring the skill of reading and applying court opinions. ...This book, however, starts with the assumption that much can be learned about opinions and their jurisprudential context before confronting thousands of them in the reporters and casebooks. The beauty of a court opinion is the wealth of learning it can provide about legal analysis and our legal system. This learning is the foundation for the development of the skills of reading and applying opinions.” Students are expected to read the notes following the cases in the textbook. The highly recommended reading in this syllabus is typically very helpful in developing strong legal analysis skills by clarifying the process of identifying specific legal issues. From time to time, other reading material may be assigned.

Course Description

This semester students will be introduced to basic theories of liability in Torts. Students will examine the following topics: (1) An introduction to the common law of torts; (2) intentional Interference with person or property; (3) privileges; (4) negligence: breach of duty; (5) Causation in fact; (6) proximate or legal cause; scope of liability (7) multiple tortfeasors; (8) negligence: duty of care; (9) owners and occupiers of land. These torts liability theories involve civil wrongs committed by one person against the person and/or property of another.

Course Objective

The objective of this course is to identify specific legal issues in order to analyze some of the public policy considerations involved in the establishment and development of basic theories of legal liability in torts.

Student Learning Outcomes

After successful completion of the course, students should be able to competently:

- 1) Analyze appellate opinions involving torts liability in order to extract relevant principles and rules, draw analogies and distinctions, and develop legal arguments.
- 2) Articulate important doctrinal rules, standards and principles of tort law from memory, explain what they mean and provide appropriate examples
- 3) Demonstrate a practical understanding of torts by recognizing commonly encountered issues and applying relevant standards and rules when presented in hypothetical and unfamiliar fact patterns

4) Communicate, orally and in writing, appropriate legal and factual arguments in support of each side of controversies involving commonly encountered covered torts liability problems and issues.

GRADING

Your final grade will be based on the following:

Exam #1 Friday September 18	12.5%
Exam #2 Midterm Exam Friday October 9	25%
Exam #3 Monday November 23	12.5%
subtotal	50%
Final Examination to be scheduled by TMSL Administration	50%
Total	100%

Assessment Description

The primary format for your examinations will be mostly objective but may also include a timed essay on your midterm exam. All of the questions are designed to help you develop the legal reasoning skills necessary to develop effective legal arguments. It is highly recommended that you prepare for these exams by reviewing the assigned reading as well as the material covered in class. The professor will give Examination #1 on Friday September 18 will include 25 objective multiple choice questions and a five-point timed essay. The midterm examination on Friday October 9 will consist of 60 objective multiple-choice questions. Examination #3 on Monday November 23 will

consist of 30 objective multiple-choice questions. The Thurgood Marshall School of Law administers a uniform comprehensive examination for all sections of Torts at the end of the semester. When administered the final uniform comprehensive examination is the same for all four sections of Torts. The final uniform examination is to be announced by the TMSL Administration.

Exams and reviews may be scheduled throughout the semester at times, other than when the class meets. A separate schedule of dates and times may be announced in the future. Practice exams may be administered throughout the semester to support you in developing your legal analysis skills. All three exams and the final uniform comprehensive exam at the end of the semester are mandatory. Failure to take a mandatory exam may result in a reduced or failing final grade. Excessive absences and lack of preparations may result in a lower grade in this course.

PARTICIPATION

Class Participation: Each student is required to read the assigned materials before they are discussed in class to contribute to the class discussion of the cases and related policy concerns. No points are awarded for the act of participating in the class discussion. Some of the cases may be assigned to individual students in advance.

ATTENDANCE

The grade of any person who has been absent from class more than five (5) times during the semester may be lowered one (1), two (2), or three (3) grades depending on the number of excess absences. Excessive absence from class may result in administrative withdrawal from the course. The number of absences a student may accumulate in a semester before the administration withdraws a student from class defines excessive absence. Absence is defined as a failure to attend

class, or failure to be present at the start of this class without a reasonably appropriate justification. The number of absences permitted in this three-hour course this semester is five.

PROFESSIONALISM

Electronic Devices: Laptop computers, tablets, or mobile devices may be used for assessing your e-textbook and for class-related note taking and reference. During class, however, it is inappropriate to use those devices for any other propose (e.g., to download music, play games, watch DVDs, access inappropriate web sites, or to instant message others). Use of a laptop, tablet, or mobile device, use of approved ear plugs in class is a privilege. In addition to any other sanction, the use of these devises may be rescinded, individually or collectively, if it is abused. Cell phones, smart watches, and similar devices must have the ringer turned off (or the volume muted).

Classroom Conduct: Students are expected to demonstrate professionalism while attending class. You must always respect your classmates. Refrain from excessive side conversations or other distracting conduct during class. It is important that you do not disrupt the classroom during instruction. Once class begins, you should remain seated and fully engaged in the discussion. If you have a medical condition that requires you to regularly leave after class has begun, please contact the Office of the Dean for approval. Otherwise, such disruption of class will be considered as unacceptable.

READING ASSIGNMENTS

WEEK 1 (August 17 -21)

pp. 1-53

An introduction to the common law of torts; Development of Liability based on fault;
The landscape of Modern Tort Law; Trial Court Procedure In Tort cases; Intentional
Interference with person or property; intent; Battery.

WEEK 2 (August 24- 28)

Intentional Interference with person or property; Battery; Assault False Imprisonment;
Intentional Infliction Of Emotional Distress; Trespass to Land, Trespass To Chattels
(Personal Property), pp. 53- 107

WEEK 3 (August 31- September 4)

Intentional Interference with person or property; Trespass to Chattels (Personal Property),
Conversion: Participation Liability; Aiding And Abetting And Conspiracy; Privileges;
Consent; pp. 107 - 157

Week 4 (September 7-11)

Privileges; Consent; Self Defense, Defense of Property; Recovery of Property &
Shopkeeper's Privilege; Necessity; Authority of Law; Discipline; ***No Class
Monday Labor Day
pp. 157- 192

Week 5 (September 14-18)

Negligence Breach of Duty; Elements of the Cause of Action; Reasonable Care;
The Reasonable Person; pp. 193 – 227

Friday September 18 Exam Number 1

Week 6 (September 21- 25)

Negligence Breach Of Duty; The Reasonable Person; The Professional;
Aggravated Negligence: Urgent Care, Gross Negligence, & Recklessness; Rules
of Conduct: Who Decides Judge or Jury?

pp. 227-277

Week 7 (September 28 – October 2)

Negligence Breach Of Duty; Rules of Conduct: Who Decides Judge or Jury?

Violation Of Statute: Proof of Negligence; pp. 277- 330

Week 8 (October 5-9) Midterm Exam Week Monday - Friday

Midterm Exam (Exam #2) 9:00 A.M. –11:00 Friday, October 9, Room 202

Week 9 (October 12-16)

Negligence Breach of Duty; Proof of Negligence; Causation In Fact; Sine Qua
Non: The “But For” Test; Proof of Causation: When Is The Inference
Reasonable? Concurrent And Overdetermined Causes; Abrogation of Substantial
Factor; Problems In Determining Which Party Caused The Harm; Loss Of
Chance; Toxi Torts And Epidemiologic Evidence.

pp. 330 -384

Week 10 (October 19-23)

Causation In Fact; Toxi Torts And Epidemiologic Evidence; Proximate Cause or
Leal Cause: Scope of Liability; Direct Versus Remote Causes; Foreseeability; The
Risk Rule: Increased Risk And Proportionality.

pp. 384 - 433

Week 11 (October 26 – 30)

Proximate Cause Or Leal Cause: Scope Of Liability; Intervening Causes: Scope Of Liability
Versus Duty, Revisited; Multiple Tortfeasors; Liability And Joinder Of Defendants; Satisfaction
And Release; Contribution And Indemnity

pp. 434 – 489

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Week 12 (November 2-6)

Multiple Tortfeasors; Contribution and Indemnity; Apportionment of Damages;
Negligence: Duty of Care; Privity and The Line Between Tort And Contract;
Foreseeability As A Limitation On Duty; No Duty Based On Policy Concerns;
Failure To Act

pp. 489- 540

Week 13 (November 9 - 13)

Negligence Duty of Care: Failure To Act; Pure Economic Loss; Emotional
Distress

pp. 540 – 598

Week 14 (November 16 – 20)

Negligence Duty of Care: Emotional Distress; unborn children; Owners and
Occupiers Of Land; Outside The Premises; On The Premises;
pp. 598 - 668

Week 15 (November 23-27)

Exam #3 Monday November 23 TMSL Last Day for Classes Tuesday
November 24

Thanksgiving Holiday Thursday November 26

Reading Period Wednesday November 25 & Friday November 27

Week 16 (November 30 - December 4)

TMSL Final Examination Week Torts I Final Uniform Examination To Be
Announced by the TMSL Administration

Week 17 (December 7-11)

TMSL Final Examination Week Torts I Final Uniform Examination To Be
Announced by the TMSL Administration

Student Accessibility Services Office (SASO)

Classroom Accommodations for Students with Disabilities

In accordance with the Americans with Disabilities Act (ADA), Texas Southern University (TSU) is committed to providing equitable access to learning opportunities to students with documented disabilities (e.g., mental health, attentional, learning, chronic health, sensory, or physical). For each class/term/semester where a student needs academic adjustments/accommodations, the qualified student must work with SASO. Contact with the SASO should be made as soon as possible to ensure academic needs are met in a reasonable time. **Only the SASO can grant, modify, or withdraw academic adjustments/accommodations.**

If you have not yet established services through SASO but have a temporary health condition or permanent disability that requires accommodations, you are welcome to contact SASO by using the information listed on the following webpage: <https://www.tsu.edu/students-services/departments/disability-services/register-with-the-ods>. The SASO office offers resources and coordinates reasonable accommodations for students with disabilities and/or temporary health conditions qualifying for accommodations/academic adjustments. Reasonable accommodations are established through an interactive process between you, your faculty, and SASO. Only those academic adjustments/reasonable accommodations granted by the SASO are recognized by TSU. TSU's policy and practice is to create an inclusive and accessible learning environment consistent with federal and state law.

ACCOMMODATIONS

Effective Fall 2021 semester, the Thurgood Law administrative process for student disability accommodation will be carried out by the TSU Student Accessibility Services Office (SASO). Managed by Director Sharron Benavides, SASO specializes in accommodation services and will

provide efficient and professional services to Thurgood Law students who may need accommodations. The following is the transition process for accommodation services:

Previously Approved Law Students

Law students who have been approved for accommodations in previous years by the Law School Student Affairs Office must complete the SASO [Accommodation Request Form](#) to request pre-approved accommodations for the Fall 2024 academic term. Students who have questions should contact SASO via email DisabilityServices@tsu.edu or phone 713-313-4210.

Accommodation Request Form link <http://www.tsu.edu/students-services/departments/disability-services/forms/student-accommodation-request-form.html>.

The procedure for law students who have not been previously approved for accommodation is as follows:

New Accommodation Requests

1. Students must have a diagnosed disability and authentic documentation to apply for services.
2. Once the applicant's disability information is received, SASO will contact the student to schedule an Intake (virtual) appointment for the student to self-report any disability challenges/barriers associated with the condition that impacts their functioning abilities in the learning environment.
3. SASO will next determine the student's eligibility status and accommodation plan based on the disability, historical documentation, and self-reporting data. SASO will send a notification letter indicating the applicant's service status. The notification letter requires the applicant's signature.

4. Upon receipt of the signed notification letter, SASO will forward a copy of the accommodation letter to the student, with instruction on how to complete the accommodation process.
5. Students must meet with each Instructor to discuss how accommodations will be implemented. The student and Instructor must sign the accommodation letter. The student will return a copy of the signed accommodation letter to SASO electronically. The signed accommodation letter is used for advocacy purposes if accommodation concerns are reported.

COVID Related Accommodations

TSU is completely re-opening for the Fall 2024 academic term for synchronous (in-person) courses. COVID-related protocols for the Fall 2024 academic term will support the quarantine time range for students who test positive or are exposed to COVID during the Fall 2024 semester. Documentation is required.

- COVID accommodations will be processed for those who report testing positive or exposed to COVID. Documentation is required.
- Students will quarantine for an assigned number of days.
- Students must submit Release of Care documentation from a licensed health care professional to Student Accessibility Services Office (SASO), return to class, and discuss missed assignment/exam make up plans with Instructors. Students will not engage in class activities during the quarantine period.
- Students must communicate if more time is needed. Documentation is required to support additional time needs.

Instructors are not to re-teach the course for excessive absences. Students are encouraged to seek assistance from the Instructor and pursue tutoring. It is anticipated that students will engage in self-study during the absence time.

Accommodation services are not to fundamentally alter course/program formats, requirements, standards, and/or guidelines. Consequently, no remote/online attendance or learning modalities will occur for synchronous (in-person) formatted courses for the Fall 2023 academic term.

Students who have questions should contact SASO via email DisabilityServices@tsu.edu or phone 713-313-4210.

The above accommodation information was provided by Amy L. Ratra, Associate Dean – Student Services and Instructional Support Thurgood Marshall School of Law

<http://www.tsulaw.edu>

POLICIES & PROCEDURES

Student rules and regulations govern the management of the Thurgood Marshall School of Law. These rules and regulations are derived from requirements for the Accreditation of the law school by the American Bar Association. Texas Southern University and the Faculty of Thurgood Marshall School of Law require compliance with these rules. The rules adopted by the faculty are amendable by a majority vote of the faculty. As law students and future lawyers, each of you should read carefully these rules and maintain the copy you received for future reference while enrolled as a student at the law school. A copy of this document is posted on the law school's website at www.tsu.edu/academics/law under Students Affairs.

The Thurgood Marshall School of Law is a full-time day program. Students are expected to devote full time to law study. Employment is strongly discouraged for first year students. In no event may

any student work in excess of 20 hours per week during the academic year. If you should have any questions about these rules and regulations, you are strongly encouraged to discuss them with your professors and/or any member of the administration of the law School.

Every law student, from the date of admission to graduation shall be charged with Knowledge of all provisions of the Student Rules and Regulations. A copy shall be posted on the law school's web site and remain there throughout each Academic Year. Hard copies will be placed in the office of the Student Bar Association, the office of each currently registered Student organization, the office of Assistant Dean for Student Development, the office of each administrative law school department, and to each member of the faculty.

Title IX/Pregnant and Parenting Students Addressing Incidents of Title IX Sexual Harassment

In accordance with Title IX of the Education Amendments of 1972, Texas Southern University (TSU) prohibits unlawful sexual harassment against any participant in its education programs or activities. Title IX requires schools to take steps to prevent and remedy sexual harassment, hostile environment, including sexual violence, gender-based harassment, dating/domestic violence, and stalking. This prohibition against sexual harassment - including sexual violence - applies to TSU students, employees, and visitors to campus.

TSU's policy is to provide an educational, employment, and business environment free of sexual violence, unwelcome sexual advances, requests for sexual favors, and other verbal or physical conduct or communications constituting sexual harassment as prohibited by state and federal law. Incidents of Sexual Misconduct should be reported to the college Title IX Coordinator, as outlined in policy. Reports of alleged Title IX violations may be made by visiting:

<https://app.smartsheet.com/b/form/4e1d5ba471ee442082f477910cb1b4c4>. Reports may also be made directly through email to TitleIX@TSU.edu.

Pregnant and parenting students should expect to obtain reasonable academic adjustments/accommodations based on their pregnant and parenting status to maintain access to the educational environment. These students should work with the Title IX Coordinator for appropriate academic adjustments/accommodations. TSU cannot grant retroactive adjustments, so reaching out early with requests is important. Discrimination against pregnant and parenting students is also prohibited under Title IX. For more pregnant and parenting information, please visit the Title IX webpage found at: <https://www.tsu.edu/about/administration/office-of-compliance/title-ix/>

Title IX

Texas Southern University is committed to fostering a safe learning environment. As professor, one of my responsibilities is to help create a safe learning environment in class. Texas Southern University and Federal Regulations (Title IX) policy prohibit discrimination based on sex and this includes sexual harassment, sexual violence and misconduct, dating violence, domestic violence, and stalking. Texas Southern University understands that these incidents can undermine a student's academic success, so Texas Southern University encourages students who have experienced sexual conduct prohibited by university policy to report these incidents when they happen to the University's Title IX Coordinator or University Confidential Resource so that the student can get the help they may need.

It is my goal that you feel able to share information related to your life experiences in classroom discussions, in your written work, and in one-to-one meetings. I will seek to keep information

you share private to the greatest extent possible. However, I also have a mandatory responsibility to notify the University's Title IX Coordinator when I become aware of incidents of prohibited conduct that violate the university's Title IX policy.

Students may speak confidentially to the University Counseling Center. Please feel free to visit their website www.tsu.edu/ucc for more information about their services. Also, students may speak with the University's Title IX Coordinator by calling 713.313.1371 or emailing titleix@tsu.edu.

THURGOOD MARSHALL SCHOOL OF LAW

COVID-19 INFORMATION SHEET

HEALTH AND SAFETY ON CAMPUS

1. The University does not require COVID-19 vaccination as a condition for attending school. As a protective measure, students are encouraged to get vaccinated. The St. Luke's vaccination clinic, located on campus in the Nabrit Science Building, is open and accessible to the entire University community, Monday-Friday, 9 a.m. – 7 p.m. There is no cost for the vaccination.
2. Students are expected to continuously self-screen for the symptoms of COVID-19. If you have symptoms and are not fully vaccinated, you should call the Student Health Center at (713) 313-7173. Please remember to exercise caution and be courteous of your fellow students.
3. Students who experience a medical emergency on campus should call (713) 313-7000. If off campus, call 911. Please inform the dispatch operator if you are experiencing shortness of breath, difficulty breathing, coughing, or have a fever.

4. Students who are unable to attend classes for health reasons, including those relating to COVID-19, should immediately contact the Associate Dean of Student Services, Amy Ratra (miamy.ratra@tsu.edu), for further guidance.

5. Students who contract the COVID-19 virus must report the information to the Associate Dean of Student Services, Amy Ratra, and the Student Accessibility Services Office (SASO), by phone at 713-313-4210 or by email at disabilityservices@tsu.edu.

6. Students who contract the COVID-19 virus will be required to quarantine under the advice of Student Accessibility Services Office (SASO). Such students are required to submit Release of Care documentation from a licensed health care professional to SASO and notify the Associate Dean of Student Services, Amy Ratra, before they return to the law school.

7. While on campus and in classrooms, students are encouraged to conduct themselves in a manner conducive to the health and safety of the entire TSU community.

a. Students should practice hand hygiene, cough etiquette, and general cleanliness.

b. Face coverings (over the nose and mouth) are not required as per the guidelines from the State of Texas. However, students are strongly encouraged to wear face coverings (over the nose and mouth) while in the law school building.

c. Students should wash or disinfect their hands before each class and after physical interaction with other people in the classroom.

d. Students should maintain classroom cleanliness. Students should create a clean classroom environment by putting away unnecessary personal items and cleaning their seating area intermittently.

e. Students who do not conduct themselves on campus in a manner conducive to the health and safety of those with whom they come in contact may be subject to discipline up to expulsion from law school.

ATTENDANCE POLICY

8. Law school classes will be fully in-person this fall. The law school attendance policy will be strictly enforced.

9. Students who contract the COVID-19 virus will be barred from attending in-person classes until submitting Release of Care documentation from a licensed health care professional to Student Accessibility Services Office (SASO). Such students will be required to study and keep up with the prescribed readings.

10. Students that are excused from in-person class attendance because they contracted the COVID-19 virus should designate a student in each of their classes to make audio recordings of the lectures. Professors are required to allow such recordings to be made. Furthermore, professors are required to meet with such students to answer questions about the materials covered during their COVID-19-related absence.

UNIVERSITY RESOURCES

11. COVID-19 TESTING

Location: H&PE 109

Hours of Operation: No appointments are necessary. Tuesday – Thursday 8 a.m. – 11:30 p.m.

Results will be available within 24 hours if the test is taken by 11:30 a.m.

12. The St. Luke's vaccination clinic is open and accessible to all University personnel and community, Monday – Friday, 9 am – 7 pm in the Nabrit Science Building.

13. STUDENT HEALTH SERVICES a. Student Health Services is open 8:00 a.m. – 5:00 p.m. Monday – Friday by appointment only.

b. A nurse is available at (713) 313-7173, Monday – Friday, from 8:00 a.m. – 5:00 p.m. to schedule appointments.

c. Appointments will be scheduled virtually and in-person, as needed.

d. If you are currently enrolled and need a copy of your immunization record go to <https://tsu.medicatconnect.com>.

e. If you are off campus but in the local area and need assistance contact the Harris County Health Department COVID-19 hotline: www.ReadyHarris.org. If you don't have the internet, call (832) 927-7575 or Houston Health Department COVID-19 Call Center: (832) -393-4220.

14. UNIVERSITY COUNSELING CENTER a. The University Counseling Center (UCC) is providing convenient Tele mental Health Services to all students.

b. Students may call 713-313-7800 to request an appointment. If someone does not answer, please leave your T-Number, name, and a contact number. Students may also complete this form to request an appointment, and someone will contact them during business hours:

c. Students may receive a call from a blocked or private number, please answer, as it may be your counselor trying to contact you.

d. If a student experiences a crisis outside of regular business hours, the student can call 833-848-1765.

e. Other, resources for support outside of the UCC include: i. Crisis text line – Text Steve to 741-741.

ii. National Suicide Hotline - 800-273-TALK (8255

<https://forms.office.com/Pages/ResponsePage.aspx?id=ViJL72KUK0Su4urH7Z-1ZFNJ2YNoWsVPs>